

Herringham Quarter, Charlton Riverside

in the London Borough of Greenwich

planning application no. 19/3456/F

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

Hybrid application for up to 1,292 residential units, including 50% affordable. Detailed planning permission sought for Phase 1 for 762 residential units and 3,592 sq.m of flexible employment, retail, community and leisure floorspace. Outline permission sought for Phases 2 and 3 for up to 530 residential units and up to 3,559 sq.m of flexible non-residential floorspace, with appearance, landscaping, layout and scale reserved

The applicant

The applicant is **Hyde Housing** and the architects are **fletcher priest architects** and **Alan Camp Architects** (Phase 1).

Strategic issues summary

- **Principle of development:** The principle of the mixed-use redevelopment of the site is supported; however, significant enhancements to the site's public transport accessibility as well as pedestrian/cyclists connectivity are required to justify the quantum of development proposed and ensure the Mayor's Good Growth aspirations are achieved. In line with the Agent of Change principle, all noise sensitive uses must be designed with regard to the existing varied industrial, as well as the emerging, context.
- **Waste sites:** Site A and Site D are waste sites, which are safeguarded through the London Plan and Intend to Publish London Plan. Compensatory capacity must be identified for these sites before their release is accepted.
- **Commercial uses:** Up to 7,151 sq.m of commercial uses are proposed on the site. The applicant should specifically designate the flexible commercial floorspace provision to ensure that these units are suitably designed.
- **Housing:** Within the detailed phase, it is proposed to provide 461 affordable units, equating to 64% by habitable room, with 15% of units as intermediate and 46% of units as affordable rent. The outline phases would deliver sufficient affordable housing to ensure that the scheme as a whole delivers 50% affordable housing. The rental levels and income thresholds should be secured within the s106 agreement. For the outline element, an Affordable Housing Scheme should be appropriately secured. Further information is also required on playspace, housing mix, residential quality and inclusive access.
- **Transport:** The Council and TfL are working to establish two new vehicle corridors in the Opportunity Area: an east-west route and a riverside route. The east-west route relies on land beyond the Applicant's redline and, as such, an interim bus solution is proposed to serve the development until the through route is available. The applicant must engage with TfL and the Council on the road/bus alignment as a priority. Further TfL are working to establish a tariff, that all developments in the area will be expected to pay, to pay for the bus route and necessary infrastructure. Further work is also required on the pedestrian/cyclist accessibility both within and beyond the site, especially given the surrounding industrial context and low PTAL rating. Further information on cycle parking is required and car parking should be reduced.

Recommendation

That Greenwich Council be advised that the application does not yet fully comply with the London Plan and Intend to Publish Plan, for the reasons set out in paragraph 107. However, the resolution of those issues could lead to the application becoming compliant with the London Plan and Intend to Publish Plan.

Context

1 On 8 November 2019 the Mayor of London acknowledged receipt of documents from the Royal Borough of Greenwich notifying him of a planning application of potential strategic importance to develop the above site for the above uses. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor must provide the Council with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Category 1A, 1B and 1C of the Schedule to the Order 2008:

- Category 1A: Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.
- Category 1B(c): Development (other than development which only comprises the provision of houses, flats or houses and flats) which comprises or includes the erection of a building or buildings outside of Central London and with a total floorspace of more than 15,000 square metres.
- Category 1C: Development which comprises or includes the erection of a building more than 25 metres high adjacent to the River Thames and Development which comprises or includes the erection of a building more than 30 metres high and is outside the City of London.

3 Once the Council has resolved to determine the application, it is required to refer it back to the Mayor for his decision, either to direct refusal or to allow the Council to determine it itself.

4 The environmental information for the purposes of the applicable Town and Country Planning (Environmental Impact Assessment) Regulations has been taken into account in the consideration of this case

5 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

6 The site comprises four distinct plots, known as Sites A, C, D and E, totalling an area of 4.21 hectares and comprised of various land uses:

- Site A (Maybank Wharf) is broadly square in shape, 1.42 hectares in size and bound by Herringham Road to the south and the River Thames to the north. The site is presently used as a household and commercial waste site;
- Site C is 0.69-hecatre in size, rectangular in shape and occupied by a two-storey linear building and warehouse, situated on the eastern boundary. It is understood that the site is vacant as the previous occupier recently went into administration;

- Site D is 0.37-hectare in size, predominately covered in hardstanding, with a single-storey 'L' shaped building in the southern corner. The site is currently occupied as a waste site for construction and demolition wastes; and
- Site E is a 0.7-hectare linear site, comprised of single storey warehouses and collectively known as the New Lydenburg Commercial Estate, comprising a range of occupiers.

7 A fifth site, Riverside Wharf (referred to as site B), is within the applicant's ownership but does not fall within the redline boundary for this application. The site, which is a safeguarded wharf, lies to the immediate east of Site A and fronts the River Thames. No works are proposed to the wharf.

8 In terms of local policy designations, the entire site is within the designated Charlton Riverside Strategic Development location and within a flood risk area. The site is also allocated within the wider Charlton Riverside area, under CR2, within the emerging Site Allocations Document. At a strategic level, the site is within the Charlton Riverside Opportunity Area.

9 The surrounding context is primarily industrial, albeit there are various mixed-use schemes coming forward in the area, notably at Flint Glass Wharf to the immediate east of the site (LPA ref: 18/0732/F and GLA ref: 4200), which has a planning application pending determination, and VIP Trading Estate to the southwest of the site (LPA ref: 16/4008/F and GLA ref: 3800), which was subject to a public inquiry in late 2019, with a decision expected by the Secretary of State in the early part of 2020.

10 The site is located approximately 500 metres from the A206 Woolwich Road, which forms part of the Strategic Road Network. The nearest part of the Transport for London Road Network, the A102 and A205, are located approximately 2 kilometres to the west and east of the site respectively.

11 Charlton station is situated approximately 1.4 kilometres to the south-west, providing access to National Rail services to London Bridge, Cannon Street and Dartford, and Woolwich Dockyard a similar distance to the southeast. Bus routes 472 and 486 serve bus stops circa 600 metres from the site (at its closest point), providing direct links to Greenwich Peninsula, Plumstead, Thamesmead and Bexleyheath. As the site is currently not well served by public transport, with access to national rail stations and London Underground or Docklands Light Railway services a considerable distance away, the site is primarily served by bus services, which are still some distance from the site. The lack of connectivity results in a low Public Transport Accessibility Level (PTAL) score for many parts of Charlton Riverside. PTAL is measured on a scale of 0 to 6b where 6b is the most accessible, the site records a PTAL of 0 - 2, indicating very poor access to public transport services.

Details of the proposal

12 Detailed planning permission is sought on Sites A and C for the demolition of the existing buildings and structures and the redevelopment of the sites, within buildings of 4 – 10 storeys, for 762 residential units and 3,592 sq.m of employment, retail, community and leisure floorspace (Use classes B1, A1, A2, A3, A4, D1 and D2). The construction of a new flood defence wall and associated landscaping and public realm are also proposed.

13 Outline planning permission is sought on Sites D and E, with appearance, landscaping, layout and scale reserved, for the development of buildings of between 4 – 10 storeys to provide 530 residential units and up to 3,559 sq.m of flexible employment, retail, community and leisure uses (Use classes B1, A1, A2, A3, A4, D1 and D2).



Figure 1 – Site Plan, with black line around the detailed element of Sites A and C.

Case history

14 GLA Officers provided initial pre-application advice on the current proposals on 5 February 2019 (GLA ref: GLA/5004). GLA officers advised that the principle of the redevelopment was supported, in accordance with the managed, masterplan-led release of surplus industrial land that is set out within the Intend to Publish London Plan. It was, however, noted that any support was contingent upon enhancing the site's accessibility, retaining and safeguarding the wharf, relocating the existing waste sites and enhancing the affordable housing offer, as well as addressing the issues within that report with regard to principle of development, housing, urban design, inclusive access and transport.

15 Further pre-application meetings were held on 7 May 2019 and 3 September 2019 to discuss the scheme. GLA officers reiterated the points raised at the earlier pre-application meeting and provided further guidance on the two existing waste sites.

Strategic planning issues and relevant policies and guidance

16 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area is the Royal Greenwich Local Plan: Core Strategy with detailed policies (2014) and the Policies Map (2014), and the London Plan

2016 (the Spatial Development Strategy for London Consolidated with Alterations since 2011).

17 The following are also relevant material considerations:

- The National Planning Policy Framework;
- National Planning Practice Guidance;
- The London Plan Intend to Publish version (December 2019);
- The Charlton Riverside Supplementary Planning Document; and
- Greenwich Site Allocations Preferred Approach August 2019.

18 The relevant strategic issues and corresponding policies and guidance are as follows:

- Principle of development *London Plan;*
- Opportunity Areas *London Plan;*
- Industrial land *London Plan;*
- Safeguarded wharves *London Plan; Safeguarded Wharves Review SPG;*
- Waste sites *London Plan; the Mayor's Environment Strategy;*
- Housing *London Plan; Housing SPG; Affordable Housing and Viability SPG;*
- Urban design *London Plan; Shaping Neighbourhoods: Character and Context SPG; Housing SPG; Shaping Neighbourhoods: Play and Informal Recreation SPG.*
- Inclusive access *London Plan; Accessible London: achieving an inclusive environment SPG.*
- Sustainable development *London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy.*
- Transport *London Plan; the Mayor's Transport Strategy.*

Principle of development

Opportunity Area

19 London Plan Policy 2.13 and Annex 1 identifies Charlton Riverside as an Opportunity Area with the potential for 3,500 new homes and 1,000 new jobs. Policy SD1 of the Mayor's Intend to Publish London Plan continues to identify Charlton Riverside as an Opportunity Area and seeks to ensure these areas realise their growth and regeneration potential. The Mayor's Intend to Publish London Plan sets a new indicative housing target for the Opportunity Area of 8,000 (from 3,500 in the adopted London Plan), but maintains the proposed 1,000 additional jobs, as set out in the adopted London Plan (2016).

20 London Plan paragraph 2.58 states that OAs are the capital's major reservoir of brownfield land with significant capacity to accommodate new housing, commercial and other development linked to existing or potential improvements to public transport accessibility, which is echoed in the supporting text to Policy SD1 within the Mayor's Intend to Publish London Plan Policy SD1. London Plan Policy 3.3 and Intend to Publish Policy H1 seek to increase the supply of housing in the capital. The proposed scheme would provide up to 1,282 homes, which equates to 5% for the ten-year target of 28,240 for RB Greenwich, set out in the Mayor's Intend to Publish London Plan.

21 At a local level, the Council allocated Charlton Riverside for redevelopment in the Core Strategy (2012), with a previous version of the SPD superseded by the current iteration in 2017, which provides a high-level masterplan for the mixed-use redevelopment of the area. Noting the area's poor connectivity and isolation, the SPD envisaged that a number of transport and access improvements would be required in order to accommodate development, including a lateral east/west route.

22 The site is also allocated as part of the wider Charlton Riverside Site Allocation within the emerging Site Allocation Document for mixed-use development, including flexible Class B workspace/studios/light industrial, residential, education, healthcare, community facilities, ancillary retail/leisure, public open space and new east-west road with Bus Rapid Transit provision.

Public transport, pedestrian and cyclist accessibility

23 Noting the area's poor connectivity and isolation, the SPD envisaged that a number of transport and access improvements would be required in order to accommodate development, including a lateral east/west bus route and a riverside bus route. These include enhancements to public transport accessibility, mainly via a lateral east/west bus route and a riverside bus route, and improved walking and cycling routes. Chapter 6 of the SPD, which provides detail on residential development in the area, notes that the densities set out within the Masterplan are contingent upon the SPD's expected improvements to public transport and enhancements to pedestrian routes.

24 TfL and the Council are presently undertaking work to establish the most appropriate routes for both the east-west route and the riverside route. It is envisaged by TfL and the Council that the riverside route would connect to Anchor and Hope Lane; however, the land necessary to complete this route is not within the Applicant's ownership. Noting this aspiration, the applicant is proposing to extend the parts of Herringham Road that lie within their redline boundary to enable a future connection to be developed. For the east-west route, the applicant is safeguarding land to the south of their site for this route. Further discussions are required to determine how the applicant's alignment for both roads fit with the concept design work that is being undertaken and TfL will engage with the Applicant and Council on this as a priority.

25 In recognition that neither the riverside route or the east-west route will be available in the short term, the applicant proposes to create a bus loop which would run up/down Westmoor Street from Woolwich Road and connecting into the loop of Herringham Road and New Lydenburg Street. A tariff towards the delivery of the bus services, both in the early and long-term, and also for the necessary infrastructure is currently being established by TfL and all developments will be expected to pay this fee. TfL expect to be able to confirm this levy imminently.

26 Given the site's poor accessibility, enhancements to the site's transport and pedestrian/cyclist accessibility are essential. It is therefore necessary that the interim bus service is provided at the outside, regardless of whether / when the adjacent sites, which would benefit from the bus service, come forward. Further discussions will be required regarding the phasing of the site and surrounding developments, as well as the trigger for payments to ensure that whichever development comes forward first is served by a bus route. Access is considered in further detail in the transport section below.

Agent of Change

27 The Intend to Publish London Plan introduces the Agent of Change principle at Policy D13, which places the responsibility for mitigating impacts from existing noise and other nuisance-generating activities on the proposed new noise sensitive development. Further, Policy SI15 of the Intend to Publish Plan states that development proposals adjacent to or opposite safeguarded wharves (including vacant wharves) should be designed to minimise the potential for conflicts of use and disturbance, in line with the Agent of Change principle.

28 The land surrounding the site is in varied industrial uses, including the safeguarded Riverside, Murphy's and Angerstein wharves. Whilst it is recognised that much of the surrounding land is allocated for redevelopment, many non-safeguarded sites are still likely to remain in industrial use for some time. As such, it is important that the residential units (and any other noise sensitive uses) and pedestrian routes are designed in response to their current industrial, as well as their future, context. This is particularly important for Phase 1: Site A lies immediately to the west to the safeguard Riverside wharf, whilst Site C lies opposite the wharf. The applicant must ensure that all units are designed in line with the Agent of Change principle. These details must be robustly secured by the Council to ensure that the introduction of residential units in this area does not compromise the operation of the safeguarded wharf.

Principle of development conclusion

29 The principle of the redevelopment of the brownfield site, within an opportunity area, is supported in principle; however, at present, the site is isolated and very poorly connected and sits within an active industrial area. Significant and tangible enhancements to the site's pedestrian, cycle and public transport connectivity must be undertaken in order to justify the development and all residential units must be designed to consider both the existing and emerging context. In addition, the other issues set out within this report must also be addressed.

Waste sites

30 Intend to London Plan Policy SI9 and London Plan Policy 5.17 state that existing waste sites, specified as those with a planning permission for a waste use or a permit from the Environment Agency, should be safeguarded and retained in waste management uses. Paragraph 9.9.2 of the Intend to Publish London Plan provides further advise on the release of waste sites, stating that waste sites should only be released to other land uses as part of a plan-led process, where waste processing capacity is re-provided elsewhere within London (based on the maximum throughout achieved over the last 5 years). The Council's emerging Site Allocation document also requires proposals in the Charlton Riverside allocation that impact waste sites to identify compensatory site provision.

31 Both Site A and D are listed on the GLA's London Waste Map: site A as waste transfer for household and commercial waste; and site D as Charlton Recycling Facility for the transfer and treatment of construction, demolition and excavation waste. Both sites have licences from the Environment Agency to operate as waste sites and are, therefore, safeguarded. Table 2 sets out the waste site's recent throughput from the Applicant's documents and GLA officers will verify these figures.

Table 1 – Waste sites

	Maximum throughput over last 5 years	Waste type	Nature of activity / position in waste hierarchy
Westminster Waste (Site A)	103,930 t/pa (2018)	Household and commercial	Waste transfer
H Sivyer (Site D)	133,950 t/pa (2018)*	Construction, demolition and excavation (CD&E)	Transfer and treatment

* It is noted that H Sivyer occupies both Site D and a site to the immediate north, which falls outside of the applicant's ownership. The waste data applies to both sites. It is appropriate, therefore, to pro-rata the waste across the two sites. The GLA will engage with the applicant to establish the appropriate method for apportioning the site.

32 Whilst it is noted that the sites are designated for redevelopment as part of the SPD, the waste sites remain safeguarded by London Plan and the Mayor's Intend to Publish London Plan. The development of the SPD Masterplan, or the allocation of a site through the Local Plan process, does not immediately nullify all other relevant policies. The SPD, which provides high-level guidance on the redevelopment of the area, does not provide any detail regarding the relocation of these waste sites or the re-provision of their capacity. The Site Allocation document does, however, recognise the need to re-provide these sites capacity as part of the redevelopment of the area.

33 The applicant and Council must have regard to the need to re-provide their capacity elsewhere in London to release sites A and D for redevelopment, either on standalone sites or on existing sites with excess capacity. Any re-provided waste sites must also be at the same level in the waste hierarchy (for example, a recycling site cannot be re-provided with a transfer station).

34 The applicant has noted that Westminster Waste are proposing to move to a site in Bexley, where a planning permission is presently pending determination. That application is seeking permission for a throughput of 150,000 t/pa. This would, therefore, provide a surplus capacity of 46,070 t/pa. The applicant should confirm the nature of the uses on this site to understand the position of the site within the waste hierarchy. The applicant should also provide confirmation from Bexley / Westminster Waste that the capacity of this site has not already been accounted for in the replacement of any third site.

35 With regard to Site D, it is understood that H Sivyer also occupies a site in the Greenwich Peninsula and uses the two sites interchangeably. As such, the Applicant considers that there is sufficient capacity on the Peninsula site to absorb the capacity of Site D. It is understood that the occupiers may strategically use their sites to respond to their demand, however the intention of the policy is to ensure sufficient capacity exists to respond to demand, regardless of who occupies the site. The GLA will continue to engage with the applicant on the compensatory capacity point to resolve this issue.

Commercial uses

36 Policy E7 of the Mayor's Intend to Publish London Plan states that mixed-use redevelopment on non-designated industrial sites should only be supported where: there is no reasonable prospect of the site being used for the industrial and related purposes; it has been allocated in an adopted local Development Plan Document for residential or mixed-use redevelopment; or industrial, storage or distribution floorspace is provided as part of mixed-use intensification. Policy EA2 of the RBG Core Strategy allocates Charlton Riverside as a new mixed-use urban quarter, where employment will be consolidated to maximise the use of land, whilst maintaining employment levels in the waterfront area. It also notes that a masterplan SPD (2012) has been prepared, which was then followed by the 2017 SPD.

37 At paragraph 5.1 the SPD states that "development proposals will need to provide suitable alternative employment space on site, not only to replace existing job numbers/business but also to create opportunities for new employment and business development". Paragraph 5.4 states that developments are expected to maintain or re-provide the equivalent employment floorspace within Classes B1 and B2 and increase job densities, with existing creative industries to be retained. The SPD also broadly identifies Site C as one with potential for significant employment uses in figure 5.5.

38 It is proposed to provide up to 7,151 sq.m of non-residential uses on the site: 3,592 sq.m of flexible non-residential uses (Classes B1, A1, A2, A3, A4, D1 and D2) on Site A and C, which form the detailed element; and 3,559 sq.m of flexible uses in the outline phases. Whilst the applicant's desire for flexibility is understood, based on the current proposal, it is possible that none of the non-residential floorspace would be occupied by employment uses, which would fail to address the SPD's aims. The applicant should carve out the employment generating land uses, both guaranteeing their provision in the scheme and ensuring that they are adequately designed.

39 The applicant has provided an Employment Study, which states that the employment offer of the site is to cater to maker/light industrial occupiers and a small amount of 'plug and play' office uses. The applicant anticipates that the proposal would generate approximately 197 jobs, against 148 on the site at present, which would help meet the SPD's aims of increasing job densities and creating opportunities for new employment and businesses development.

40 Separate to employment numbers, however, is the SPDs aims to maintain or re-provide equivalent employment floorspace. The applicant's Employment Study document notes that the proposed flexible commercial space would be suitable for some of the existing occupiers on the site, but does not provide any details of who the existing occupiers that could be retained are, their uses, their specific needs or their unit sizes. The document also does not provide any detail on the relocation of other occupiers who cannot remain on the site. The applicant should provide a schedule, setting out all existing occupiers and specifying those that could be retained and those that cannot. A strategy for the management of the light industrial spaces should also be secured within a s106 agreement. GLA officers also have concerns regarding the design of the units, which is discussed in further detail in the design section below.

41 Retail and leisure uses are also proposed at ground floor. Whilst small scale retail uses, complimentary to the scale of development, and leisure uses are supported in principle, the applicant should engage with the Council to confirm whether there is a need

for any social / community infrastructure to be provided on the site to support the wider regeneration of the Charlton Riverside Opportunity Area in accordance with London Plan Policy 2.13 and draft London Plan Policy SD1.

Housing

42 Table 2 below provides the detailed housing and affordable housing mix and tenure split, as well as the indicative outline mix and tenure split.

Table 2: Proposed housing mix and tenures

	Studio	1 bed	2 bed	3 bed	Total	% unit
DETAILED						
Market	48	113	108	32	301	40
Affordable	20	155	165	121	461	60
Affordable rent	0	114	118	116	348	
Shared ownership	20	41	47	5	113	
OUTLINE						
Market	10-20%	25-45%	25-45%	10-20%	Up to 530	c. 35 – 40% (to ensure 50% across entire site)
Affordable	0 – 10%	30 – 60%	25 – 50%	0-10%		
Affordable rent	0%	10-30%	25-45%	0-10%		
Shared ownership	0-15%	20-30%	25-50%	0-10%		

Affordable Housing

43 London Plan Policies 3.11 and 3.12 and Intend to Publish London Plan Policy H5 and Policy H6 seek to maximise the delivery of affordable housing, setting a strategic target of 50% across London. The Mayor's Affordable Housing and Viability Supplementary Planning Guidance seeks to increase the provision of affordable housing in London and embed affordable housing into land prices. The SPG introduced a threshold approach to viability, which is incorporated within Policy H6 of the Intend to Publish London Plan; schemes on industrial land that provide 50% affordable housing on site and meet the specified tenure mix, as set out in Intend to Publish Policy H7, are not required to submit viability information nor be subject to a late stage review. Where a site on industrial land re-provides the existing quantum of industrial floorspace in the proposed redevelopment, the Fast Track threshold level is 35%.

44 The scheme proposes to provide 50% affordable housing overall. Phase 1, comprising Sites A and C, which is submitted in detail, would provide 461 affordable units, equating to 60% by unit and 64% by habitable room. Table 2 details the tenure breakdown for Phase 1. Within the phase, Site A would comprise market, affordable

rented and intermediate homes, whereas Site C is to be entirely affordable rent. Noting the site's industrial context, the applicant must demonstrate that the two sites are entirely comparable in terms of residential and design quality. The applicant must also confirm that all areas of amenity space and playspace are available for all residents.

45 Phases 2 and 3, submitted in outline, would deliver sufficient affordable housing to ensure that the scheme provides 50% overall. Given that Phase 1 provides 64% affordable housing, it is expected that Phases 2 and 3 will provide in the order of 35 – 40% affordable housing, with a tenure split of 40% intermediate and 60% affordable.

46 The delivery of a significant proportion of the site's affordable housing in Phase 1 is supported as it ensures the early delivery of homes, whilst also ensuring that the scheme provides affordable housing throughout the development and, therefore, ensuring mixed and balanced communities. For the outline phases, an Affordable Housing Scheme should be appropriately secured, which would require the submission of a detailed breakdown of the tenure and unit mix in phases 2 and 3.

47 The Affordable Rented units are proposed to be let at London Affordable Rent, which is the Mayor's preferred affordable rent product, where rents are set annually by the GLA at significantly less than 80% of market rate. The rental levels should be secured within the s106 agreement.

48 The applicant has also confirmed that the intermediate product will be London Shared Ownership. London Shared Ownership units should be affordable to households on a range of incomes below £90,000, with a deposit of approximately 10%. The income thresholds, including a three-month Eligible Purchaser clause, should be secured within the s106 agreement.

49 The applicant is a Strategic Partner of the Mayor under the Homes for Londoners Programme 2016-2021 and the applicant has confirmed that Programme grant is to be used in the development. To ensure that the development qualifies for the Fast Track route, the applicant should commit to providing 50% affordable housing, without reference to a 'without grant' fall back offer, in the s106 agreement.

50 In accordance with the Mayor's Affordable Housing & Viability SPG, the S106 agreement must include an early stage viability review mechanism to be triggered if an agreed level of progress on implementation has not been made within two years of any planning permission. If the proposals cannot be assessed under the Fast Track Route, the applicant must provide a Financial Viability Assessment (FVA) and a late stage review will also be required and secured within the S106. A draft of the S106 agreement must be agreed with GLA officers prior to any Stage II referral; example clauses are provided within the Affordable Housing & Viability SPG.

Housing mix

51 London Plan Policy 3.8 and Policy H12 of the Mayor's Intend to Publish London Plan promote housing choice in terms of the mix of housing sizes and types, taking account of the housing requirements of different groups and the changing roles of different sectors in meeting these. London Plan Policy 3.11 and Intend to Publish London Plan Policy H12 state that priority should be accorded to the provision of affordable family housing.

52 As Table 3 above illustrates, the scheme proposes up to 1,292 units across a range of unit sizes. In the detailed element, 24% of units are family-sized, which rises to 26% in the affordable tenures and is supported. Within the outline phase, the majority of units are to be 1 or 2 bedroom units. The Intend to Publish London Plan states that accessible locations are the most appropriate for smaller flats. The site is not considered to be an accessible location and the applicant and Council must consider whether the unit mix is most for the site. Any subsequent reserved matters application it would be expected that the affordable housing would be provide across a range of unit sizes that meets local needs. The applicant should confirm that the proposed mix meets an identified need, particularly in the affordable tenure.

Residential quality

53 London Plan Policy 3.5 and Policy D4 of the Intend to Publish London Plan promotes quality in new housing provision, with further guidance contained in the Housing SPG. In accordance with strategic priorities, it is essential that schemes deliver the highest standard of residential quality, and that baseline standards are exceeded wherever possible. The Intend to Publish London Plan introduces Policy D12, which places the onus on new development to ensure significant mitigation is in place to ensure good residential quality, which is particularly important in this context, noting the proximity of working safeguarded wharves, active industrial uses and roads.

Detailed

54 There appear to be a significant number of single aspect residential units on Sites A and C, including single aspect units with outlook only onto existing industrial land or only onto the internal courtyards/roads as well as several north facing single aspect units. The applicant states that a number of units are 'dual orientation', which simply relates to a single aspect unit having a balcony that then enables an alternative view. The applicant must seek to maximise dual aspect units to improve the residential quality of the development.

55 On site A, it is proposed to create three linear blocks, running south to north, and the eastern elevation faces the safeguarded wharf. All units that look onto the wharf benefit from dual aspect and have bedrooms located away from the wharf. These units also have wintergardens, rather than balconies. The applicant must confirm that suitable internal noise levels are achieved in the other habitable rooms in these units to ensure that a suitable level of noise insulation and residential quality is achieved. It is also proposed to provide communal winter gardens on these elevations, accessible to all residents of the block. The applicant must confirm that all residents of the block can access these winter gardens.

56 Site C is entirely to be entirely affordable housing, whereas Site A contains a mix of tenures, with the affordable blocks located on the southern part of the site. It is recognised that Site A and Site C have different contexts; however, the applicant must demonstrate that there is design parity between the affordable residential units on Site C and the affordable and market residential units on Site A.

Outline

57 Site D and E are submitted in outline, with appearance, landscaping, layout and scale reserved. The Design Code should specify how residential quality of the outline

phases will be ensured, through commitments to maximising dual aspect units through layouts, for example. The applicant should amend the wording within the Design Guidance to require future reserve matters applications to maximise active frontage through, for example, setting maximum amounts of continuous inactive frontage.

Inclusive access

58 London Plan Policy 3.8 and Intend to Publish London Plan Policy D7 requires that at least 10% of units within new build schemes are wheelchair accessible and the remaining 90% are wheelchair adaptable. It is proposed to provide 10% wheelchair accessible dwellings. For the detailed phases, the applicant has committed to the provision of 10% of units; however, the applicant must confirm that these will be comprised of a range of unit sizes and be distributed throughout the building to ensure parity in choices for wheelchair users. There does not appear to be any mention of wheelchair units within the Design Code; this document must be updated to refer to these units. The provision of these units must be secured within the s106 agreement.

Children's playspace

59 London Plan Policy 3.6 and Intend to Publish London Plan Policy S4 require development proposals to make provisions for play and informal recreation based on the expected child population generated by the scheme. The Play and Recreation SPG expects all new residential developments to incorporate good quality, accessible play provision for all ages of a minimum of 10 sq.m. per child.

60 Within the detailed element, it is proposed to provide playspace for all ages at ground and on podium gardens. Across Sites A and C, the scheme is estimated to yield 439 children, generating a requirement of 4,391.1 sq.m of playspace. On Site A, it is proposed to provide 1,294 sq.m, whilst it is proposed to provide 2,784 sq.m on Site C, totalling 4,078 sq.m. The majority of playspace on Site C would be located within the linear park to the west of the site; the applicant must consider how the playspace on this elevation would be overlooked by the development and how it would interface with the emerging proposals for the adjacent Stone Foundries site.

61 The detailed phase falls short of the London Plan and Intend to Publish London Plan policy requirements and the applicant must explore opportunities to enhance this, noting that site's poor accessibility and limited options for play in the immediate vicinity. The applicant must confirm that all residents have access to all areas of playspace, in line with Intend to Publish London Plan Policy S4. Once the final provision has been confirmed, all playspace should be tenure blind and retained in perpetuity.

62 For the outline element of the scheme, the Design and Access statement states that a total of 538 sq.m of playspace will be provided for Sites D and E. Whilst the exact tenure breakdown has not yet been established and, relatedly, the expected child yield has not been calculated, it is anticipated that Phases 2 and 3 will yield substantially more than 54 children, given that Phase 1 is likely to generate 439 children. Using the indicative tenure split, the applicant should demonstrate how sufficient play space can be provided on Sites D and E for the children the development generates and a commitment to delivery should be secured within the Design Code.

63 At present, taken as a whole, the development would significantly underprovide playspace; this is not acceptable, given the site's poorly connectivity, high level of

affordable homes and limited options for alternative play and must be addressed to comply with London Plan Policy 3.6 and Intend to Publish London Plan Policy S4.

Urban design

64 Good design is central to all objectives of the London Plan, the objective to create a city of diverse, strong, secure and accessible neighbourhoods, to which Londoners feel attached whatever their origin, background, age or status. These objectives are mirrored in the Mayor's Intend to Publish London Plan, with the concept of Good Growth, growth that is socially and economically inclusive and environmentally sustainable, the bedrock of the plan. Policies contained within chapter seven of the London Plan, and chapter 3 of the Intend to Publish London Plan, specifically look to promote development that reinforces or enhances the character, legibility, permeability and accessibility of neighbourhoods. It sets out a series of overarching principles and specific design policies related to site layout, scale, height and massing, internal layout and visual impact as ways of achieving this. It should be noted that Policy D12 of the Intend to Publish London Plan introduces measures relating to fire safety that must be addressed via the planning process.

Density

65 The London Plan provides a density matrix, which provides guidance on the densities of developments by the PTAL, and states at Policy 3.4 that developments should optimise housing output by taking local context and character into account. Intend to Publish London Plan Policy D3 is less prescriptive regarding densities but retains the principal that good design is linked to ensuring site's provide their optimal density. The design-led approach to density, set out in the Intend to Publish London Plan, will be established through taking into account: the site's context, including the surrounding uses, built form and character; the site's connectivity and accessibility by walking, cycling and existing and planning public transport links; and the capacity of the surrounding infrastructure.

66 With the exception of the land to the east of Riverside Wharf, where planning permission is pending for a residential-led scheme at Flint Glass Wharf (LPA ref: 18/0732/F and GLA ref: 3800), the site is surrounded by industrial land uses of varying scales. It is recognised that the sites surrounding the site are expected to be redeveloped, the context of the Riverside area is likely to remain industrial or semi-industrial for a number of years. As discussed above, the site itself is isolated from any routes to transport nodes and all pedestrian routes through the wider Charlton Riverside area are convoluted or used by industrial traffic. In order to be considered appropriate for high density residential development, the applicant must demonstrate that access to the site is significantly enhanced, both for pedestrians/cyclists and via public transport. The SPD itself notes that the densities within the masterplan are predicated on moderate transport improvements. Access to the site is discussed in greater detail in the transport section below.

Layout

67 Figure 1 illustrates the proposed masterplan. It is proposed to build 8 buildings across the site, with two submitted in detail on Site A and three on Site C.

68 On Site A, it is proposed to create two buildings, one linear building on the west and a perimeter block, with podium garden to the east. Public realm is proposed to the north of the site, enhancing, and connecting to, the Thames Path. The existing jetty would be upgraded and used as a pedestrian feature; the applicant and Council should ensure that the EA/PLA, as appropriate, are involved in this process. The public realm works are supported; however, they should not be considered in isolation, and the application should ensure that these routes connect to existing and proposed pedestrian/cyclist routes; this is covered in greater detail in the transport section. It is proposed to locate vehicular access into the basement on the eastern elevation of the site, immediately adjacent to the wharf.



Figure 2 – Proposed Masterplan

69 Three buildings, arranged linearly, are proposed on Site C. It is proposed to create a linear park to the west, which is supported in principle; however, the applicant should demonstrate how this area will connect into the wider site, as well as how the linear parks interacts with the adjacent sites. Furthermore, whilst the ground floor uses are acknowledged, the applicant should provide further evidence to demonstrate that these units will overlook the linear park and pedestrian route; this is particularly important in the short-term, when surrounding sites will be in active industrial use.

70 The outline element is at an early stage of development, with the layout of these plots reserved; however, parameter plans are secured for access/movement, building plots, heights and open space, which will impact the layout to an extent. When developing the detailed design for Phases 2 and 3, the applicant should consider the surrounding

land uses, ensuring that layouts appropriately respond to their current (and emerging) context.

Industrial uses

Relationship with retained wharf

71 Site A lies immediately adjacent to the safeguarded wharf, which is due to remain in active use. Whilst the vehicular route into Site A's car park lies on the boundary, the eastern most building on Site A lies in close proximity to the active wharf. The northern block on Site C also lies in close proximity to the working wharf and its access road. The applicant must confirm that regard has been had to the Agent of Change principle, ensuring that the criteria of Part D of the Policy have been met and the Council must ensure that adequate mitigation has been secured. The applicant must ensure that there is design parity between the market units, which overlook the wharf in Site A, and the affordable units in Site C, which lie opposite wharf.

Proposed light industrial uses

72 The applicant is proposing to provide commercial uses at ground floor, including light industrial uses. It is important for light industrial units to have direct vehicular access to their front doors for loading/unloading. At present, it seems that a number of the commercial units could not be directly accessed from the public realm, due to positioning of trees/street furniture/pedestrianised routes. The need for direct access is set out within the GLA's Industrial Intensification Primer, as well as other requirements, such as loading/goods lifts. The applicant should provide further design work to evidence that these units are suitable for light industrial uses.

The GLA acknowledge the competing priorities in play when designing the spaces between the buildings; however, for buildings to function adequately as light industrial uses, it is important that they have vehicular access/servicing access. In this regard, and as set out above, the applicant should consider specifically locating the light industrial/maker spaces on the site to ensure that these spaces are suitably designed, noting the difference in context for a standard A1 retail unit, for example.

Heights

73 In terms of heights, the proposed development would range from 6 to 10 storeys. Site A would be between 8 – 10 storeys, the northern parts of sites C and D would also rise to 10 stories, before stepping down to the south. The SPD seeks a maximum height of 10 storeys along the River Thames, with the height stepping down to 3/4 storeys on plots C, D and E. The result is a development of a relatively uniform massing, with little variation between the sites. The applicant should confirm the distances between blocks and provide views of the scheme from within to enable an assessment of the quality of these spaces.

74 The applicant has provided a Townscape and Visual Impact Assessment as part of the Environmental Statement. The applicant should provide the views within the TVIA at winter, as a number of views, particularly from Derrick and Atlas Gardens, feature many, full trees. It is not possible to fully consider the scheme at present.

Design Code

75 The detailed design of the outline elements of the scheme will be guided by the information within the Design Code, as well as the parameter plans secured. The Design Code includes the following:

- Townscape principles;
- Building frontages, including elevational treatments and balconies;
- Ground floor land uses;
- Roofscape, including PV panels and green roofs;
- Façade materiality;
- Entrances;
- Access and movement;
- Cycle parking, car parking and servicing; and
- Streetscape.

76 It is considered that there should be the inclusion of a code relevant to the light industrial units, or the code should be flexible enough to respond to these. For the commercial uses, the Code states that 'commercial entrances must have a consistent design along the frontage'. The design rationale for this Code is understood; however, related to the above, it is also important to ensure that the units are design to be able to be used viably as light industrial units. A similar principle applies to the codes relating to access to the units.

77 Within the private and semi-private amenity space section of the Design Code, it states that 'where apartments are provided with less amenity space which is directly accessible from the dwelling, the use of communal gardens at podium level and/or roof terraces should be considered to make up the shortfall'. GLA officers have some concerns with this code at present. The development is required to provide a minimum amount of amenity space per flat, in accordance with London Plan and Intend to Publish Policy. The Design Code should not be used to pre-emptively justify a shortfall against these standards. Furthermore, and as noted above, there is a limited amount of play space proposed within Phases 2 and 3 and it is therefore the importance of meeting the minimum standards should be underscored further.

78 A similar concern is levied at the Play section, which states that playspace should be in accordance with the Development Specification; however, as discussed above, the playspace is not sufficient at present. The Code should seek to comply with relevant policy.

79 As set out above in relation to residential quality, the Design Code must also be enhanced to ensure the residential quality of the development.

Urban greening

80 In accordance with London Plan Policy 5.10 and Policy G5 of the Intend to Publish London Plan, the proposals should contribute to the greening of London by including urban greening as a fundamental element of site and building design, and by incorporating measures such as high-quality landscaping (including trees), green roofs, green walls and nature-based sustainable drainage.

81 The detailed element of the proposal has an UGF of 0.29, which falls short of the target of 0.4 for residential-led schemes. The applicant should explore opportunities to maximise greening on the site and provide further details within the Design Code about how this can be maximised in the outline elements.

Energy

82 The applicant has followed the energy hierarchy, which is supported; however, further information is required before the proposals can be considered fully acceptable in line with London Plan Policy 5.9 and Intend to Publish Plan Policy SI2.

83 With regard to 'be lean', the non-domestic element of the proposed development is estimated to achieve a reduction of 8 tonnes per annum (10%) in regulated CO₂ emissions compared to a 2013 Building Regulations compliant development, whereas the outline element is estimated to achieve a reduction of 13%. The Intend to Publish Plan includes a target of 15% improvements on the 2013 levels and therefore the applicant should model additional energy efficiency measures. Further information is also required on overheating.

84 For 'be clean', the applicant has identified that there are no existing or planner district heating networks in the vicinity; however, the applicant should demonstrate how the site is future proofed to enable connection to one in the future. Further information is also required on the site-wide heat network.

85 To ensure compliance with the 'be green' element of the hierarchy, further information on the proposed PV panels and on the proposed hybrid centralised heat system as well as Ground Source Heat Pumps is required.

86 The domestic carbon savings are currently projected to be 36% for the detailed element of the scheme, compared with a 2013 Building Regulations compliant development, which exceeds the target set out within London Plan Policy 5.2; however, as all domestic buildings are required to meet the zero-carbon target, the remaining regulated CO₂ emissions should be met through a contribution to the borough's offset fund (and for the outline element, this figure should be calculated at the reserved matters stage). The non-domestic carbon savings will be 39% for the detailed phase and 36% for the outline phase, which must be demonstrated in each subsequent RMA.

Transport

Public transport and accessibility

87 As discussed above, the site is located in an area of very poor public transport accessibility. In addition, pedestrian and cycle routes to and from the site, as well as the nearest bus stops, are along narrow footways. These routes are through active industrial

areas, dominated by vehicles and dirty/noisy activities. The pedestrian/cycle routes are not of a quality suitable for a high density residential mixed-use development as proposed. The Thames Path is of a better quality but it also suffers from very low natural surveillance, which is likely to limit the number of people that will use the route, especially when it is dark.

88 To facilitate the quantum of proposed development and achieve the Mayor's strategic mode shift, significant improvements in the site's accessibility by public transport and for pedestrians/cyclists are required. Further engagement with TfL, the GLA and the Council are required to ascertain whether the measures proposed are the most appropriate and are sufficient to sustain the development both in the long-term as well as to create an acceptable transport offer and walking and cycling environment for early residents, especially since Phase 1 includes Site A, which currently has a PTAL of 0.

89 As set out above, there are two new vehicle corridors proposed to serve development within the OA; an east-west bus route and a riverside bus route. As the site is isolated and is poorly connected, further discussion is required on the positioning of the roads, the bus tariff and the phasing of the delivery of the bus route, as discussed in the principle of development section.

Walking and cycling

90 Improving walking and cycling routes through the site and to key trip attractors are crucial to the success of the proposed development. Whilst it is acknowledged that there will be some improvement to the permeability as a result of the proposed development, pedestrians and cyclists will largely remain restricted to certain routes during the interim period, prior to the build out of adjacent sites and the provision of a network of new and improved pedestrian and cycle links.

91 Several improvements to the pedestrian and cycling environment within the site boundary are proposed, which in principle are supported; however, further clarification/amendments are required as to the proposed measures. TfL will engage with the Council and Applicant on this point and amendments should be made prior to a decision on the application.

92 A number of improvements to the pedestrian and cycling network are also proposed outside of the site's boundary. Whilst this is welcomed, further discussion with Greenwich and TfL should be undertaken to determine whether they are most suitable, whether they will facilitate walking and cycling to and from this site at all times and whether more or different provision is required. The mechanism for the delivery of these routes must also be discussed. It is essential that early occupiers, as well as all those occupying Phase 3, have good access on foot and by cycle to a range of local facilities and services.

93 All improvements, both on-site and off-site, will need to ensure that the walking and cycling routes are accessible to all and deliver against the Healthy Street indicators identified in policy T2 of the Intend to publish London Plan. Improvements within this area will need to be delivered through a S278 agreement with the Council.

94 All proposed routes and works, both with the red line boundary and outside, should be of the highest quality, as required in an Opportunity Area, and to set the standards that will be applied to the rest of Charlton Riverside.

Cycle Parking

95 The proposed quantum of cycle parking for the detailed element of the scheme accords with minimum standards contained within the Intend to publish London Plan. A condition should be attached to any planning permission requiring the provision of cycle parking for future phases to be in accordance of the minimum standards identified in Policy T5 of the Intend to publish London Plan. All cycle parking provided should accord with London Cycle Design Standards (LCDS) and this should be secured by condition having been demonstrated as part of the application.

Car parking

96 It is proposed to provide 103 car parking spaces for the detailed element of the scheme, which equates to a parking ratio of 0.14. Of these spaces, 24 would be for general car parking. In line with Intend to Publish London Plan Policy, developments in an Inner London OA should be car-free; as such, the applicant should seek to reduce this car parking level. The overall provision of car parking for the outline element is unknown and must be clarified, noting the need to comply with Intend to Publish London Plan Policy.

97 It is proposed to provide 74 disabled parking spaces, which equates to just under the equivalent of ten per cent of residential dwellings. TfL officers are concerned that this level of provision from the outset will result in a significant amount of inactive space and/or unauthorised use for general parking. Instead, the applicant should provide the equivalent to 3% of all dwellings at the outset, with the potential for the conversion of a further 7% of spaces, should demand arise. A further benefit of providing less car parking at the outset is that it should enable better quality public realm.

98 Of the spaces proposed, 20 per cent are to be provided with active provision for electric vehicle charging for the outset, with all remaining spaces having passive provision. This accords within the minimum standards within the Intend to publish London Plan. The Parking Design and Management Plan must contain detail on how active provision can be introduced at spaces which will have passive provision.

99 Five car club spaces proposed. In accordance with the Intend to publish London Plan, all car club spaces should be provided with electric vehicle charging points. Car club provision counts as general parking and, therefore, justification should be provided for this quantum based on need.

Trip Generation Assessment

100 A multi-modal trip generation assessment has been provided; however, it appears to underestimate the impact that the proposed development will have on the public transport network. A revised trip generation assessment is therefore requested to enable consideration of any necessary mitigation. TfL have provided detailed comments on this matter to the Council and Applicant.

Delivery and Servicing

101 It is proposed to provide 7 loading bays to serve the development. The Transport Assessment should be updated to include information which demonstrates that this level

of provision is sufficient to serve the delivery and servicing needs of the proposed development including deliveries of on line and other shopping.

102 Further clarification is needed on the delivery and servicing movements for the proposed development, and the measures that are to be implemented which reduce the need for reversing in line with the Mayor's Vision Zero approach.

103 An outline Delivery and Servicing Plan (DSP) has been provided. A full DSP should be secured through condition, in line with policy T7 of the intend to publish London Plan.

Construction

104 An outline Construction Logistics Plan has been provided to support the application. A full CLP should be secured through condition, in line with Policy T7 of the Intend to publish London Plan. Due to the phased nature of the development, it is recommended that a separate CLP is prepared for each phase, which will enable the applicant to address the differing issues which may arise from each phase and take account of already occupied parts of the development.

Local planning authority's position

105 Officers from the Council are considering the application and have not identified a date to take it to planning committee.

Legal considerations

106 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Council must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged or direct the Council under Article 6 of the Order to refuse the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Conclusion

107 London Plan and Intend to Publish London Plan policies on Opportunity Areas, employment land, industrial uses, housing, affordable housing, design, transport, energy are relevant to this application. The proposals do not currently comply with the London Plan and Intend to Publish London Plan. The following changes, however, might lead to the application becoming compliant:

- **Principle of development:** The principle of the mixed-use redevelopment of the site is supported; however, significant enhancements to the site's public transport accessibility as well as pedestrian/cyclists connectivity are required to justify the quantum of development proposed and ensure the Mayor's Good Growth aspirations are achieved. In line with the Agent of Change principle, all noise

sensitive uses must be designed with regard to the existing varied industrial, as well as the emerging, context.

- **Waste sites:** Site A and Site D are waste sites, which are safeguarded through the London Plan and Intend to Publish London Plan. Compensatory capacity must be identified for these sites to justify their redevelopment.
- **Commercial uses:** Up to 7,151 sq.m of commercial uses are proposed on the site. The Applicant's Employment Study specifies that the employment offer is to be a mix of maker/light industrial spaces and 'plug and play' office floorspace. Noting this, the applicant should specifically designate the flexible commercial floorspace provision to ensure that these units are suitably designed.
- **Affordable housing:** Within the detailed phase, it is proposed to provide 461 affordable units, equating to 64% by habitable room, with 15% of units as intermediate and 46% of units as affordable rent. The outline phases would deliver sufficient affordable housing to ensure that the scheme as a whole delivers 50% affordable housing. The rental levels and income thresholds should be secured within the s106 agreement. For the outline element, an Affordable Housing Scheme should be appropriately secured. Further information is also required on playspace, housing mix, residential quality and inclusive access.
- **Urban design:** Further information on access and connectivity is required to justify the site's density. Additional information is also required on the site's layout, the design of the industrial units, heights, the outline Design Code and urban greening.
- **Energy:** The applicant has followed the energy hierarchy, which is supported; however, further information is required on all elements of the energy hierarchy before the proposals can be considered fully acceptable in line with London Plan Policy 5.9 and Intend to Publish Plan Policy SI2.
- **Transport:** The Council and TfL are working to establish two new vehicle corridors in the Opportunity Area: an east-west route and a riverside route. The east-west route relies on land beyond the Applicant's redline and, as such, an interim bus solution is proposed to serve the development until the through route is available. The applicant must engage with TfL and the Council on the road/bus alignment as a priority. Further TfL are working to establish a tariff, that all developments in the area will be expected to pay, to pay for the bus route and necessary infrastructure. Further work is also required on the pedestrian/cyclist accessibility both within and beyond the site, especially given the surrounding industrial context and low PTAL rating. Further information on cycle parking is required and car parking should be reduced.

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